

PUBLIC SUBMISSION

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General Comment

Unlicensed use of copyrighted materials in order to produce products that compete with that material is an affront to the very existence of copyright law. Granting AI companies unrestricted use of copyrighted materials is a threat to all independent creative work. Were the use of copyrighted materials for training AI models to be considered fair use, no person or corporate entity would ever be able to release their work to the public without fear that it would be immediately consumed by AI companies and used to produce endless variations of that work. Any work that became publicly observable would immediately become a commodity whose availability was controlled not by its creator, but companies whose models were trained on the work.